It is presumed that trustees can never justify the abandonment of any part of the security on the mere ground of consulting the convenience of the mortgagor; and they must be prepared to show that the act was calculated under the circumstances to promote the interest of the *cestuis que trust*. But if the mortgagor be ready to pay off the mortgage on a transfer of the security, unless the trustees will consent to release, and the existing mortgage, even when confined to the narrower parcels, is a clearly beneficial one and the value still abundantly ample, the trustees would surely incur no responsibility by acceding to the arrangement (*a*). The prevailing opinion of conveyancers appears to be that where trustees have a power of investing on mortgage and of varying securities (which a power of investing on mortgage implies) the transaction will be considered as tantamount to repayment of the mortgage money, and reinvestment by the trustees on a mortgage of the hereditaments retained as a security, and that the purchaser of the released hereditaments is not bound to see to the sufficiency of the new security, or that the acceptance of the new security does not involve a breach of trust (*b*).

[47. **Whether bound to consolidate mortgages.** — It is conceived that although trustees holding independent securities from the same mortgagor may have the right to consolidate them, it is not imperative upon them to do so, but
[*594] that they * may deal with the securities independently, or allow one or more of them to be redeemed, without incurring any liability for loss which may arise from the subsequent depreciation in the other securities. They should, however, satisfy themselves before parting with any of the securities, or allowing any of them to be redeemed, that the margin of value on those which are retained is then sufficient to justify a present advance to the amount remaining due to the trustees upon such securities.]

48. **Discharge of a mortgage on a settled estate.** — Trustees of a settled estate with a power of sale and reinvestment

(*a*) See Whitney *v.* Smith, 4 L. R. Ch. App. 513; Pell *v.* De Winton, 2 De G. & J. 13.

(*b*) See Davidson's Preced. vol. ii. p. 835, 3d ed.; Dart's V. & P. vol. ii. p. 612, 5th ed.